

VCU316060 Macedonio, Eloy et al vs. K&M Visser Dairy et al

County: tulare

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-07-13

Motion: Motion for Final Approval of PAGA and Class Action Settlement

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Re: Macedonio, Eloy et al vs. K&M Visser Dairy et al

Case No.: VCU316060

Date: July 13, 2026

Time: 8:30 A.M.

Dept. 9-The Honorable Nathan D. Ide

Motion: Motion for Final Approval of PAGA and Class Action Settlement

Tentative Ruling: To grant the motion; to set the Final Compliance Hearing re: distribution of the settlement fund for January 25, 2027, 8:30 am in Department 9.

Facts and Analysis

Plaintiff's motion for final approval of class action and PAGA settlement, attorneys' fees, costs, enhancement award, LWDA payment and class certification for settlement purposes came on for hearing on July 13, 2026. The Court finds and rules as follows:

The settlement administrator CPT, through its Case Manager, filed a declaration detailing the following events.

On February 19, 2026, the administrator received a mailing list of 109 potential class members from Defendant's counsel with names, contact information, social security numbers and relevant employment information.

On March 5, 2026, after the administrator processed the names through the National Change of Address Database and updated the list with any updated addresses located, the administrator sent class notice by mail to 109 members, with fifteen (15) notices returned as undeliverable. A total of ten (10) notice packets were remailed, with five (5) packets remaining undeliverable as lacking a forwarding address.

Class members had sixty (60) days, until May 19, 2026 to submit objections, disputes and/or requests for exclusions. Zero (0) requests for exclusion and zero (0) valid objections have been received from class members. Therefore, all 109 Class Members or 100% of the Class will participate in the settlement

The court presumes the settlement is fair and reasonable given (a) that it was reached through arms-length bargaining at mediation, (b) that there was sufficient time for investigation and discovery since commencement of litigation (c) class counsel have particularized experience with the claims at issue in the case, and (d) there appear to be no disputes or objections. (*Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1802.)

A net settlement amount of \$290,185 is available to pay to the class members in accordance with the terms of settlement. The highest class portion to be paid is approximately \$7,699.96 and the average class portion to be paid is approximately \$2,662.25.

The Court believes basic information about the nature and magnitude of the claims in question and the basis for concluding that the consideration being paid for the release of those claims represents a reasonable compromise under the circumstances, in accordance with *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 133. This case involved extensive informal discovery and investigation of disputed claims, including review and analysis by Plaintiff's expert. The settlement avoids significant risks and delay that would result from further litigation of the case, which would include, amongst other matters, certification proceedings, trial, and the possibility of further delay and cost resulting from appeals.

Class counsel has provided an updated declaration in support of the requests for attorney fees representing 33.33% of the gross settlement fund of \$500,000 or \$166,665. Counsel indicates that the firm has spent 1390.2 hours on this case at a rate of \$775 plus 347 hours by paralegals at a rate of \$175, resulting in a total lodestar of \$168,710. (Declaration of Martinez ¶10.)

Counsel has additionally provided sufficient cost information indicating actual costs incurred in the amount of \$10,150. (Declaration of Martinez ¶13.)

The Court believes the requested attorney fees and costs appear reasonable under the circumstances. Additionally, counsel has provided a sufficient declaration to demonstrate adequate previous experience with class actions to further support the reasonableness of the award.

The settlement administrator has provided, in the declaration describing the work it has performed on the case, a value of services totaling \$8,000.

The Court believes the amount requested as compensation for the administrator appears reasonable.

The settlement agreement designates distribution of unclaimed settlement proceeds to Valley Children's Hospital in accordance with Code of Civil Procedure section 384.

The Court previously approved representative payments of \$5,000 each and finds that the requested enhancement payments are appropriate under the circumstances.

Finally, the Court confirms its conditional certification of the settlement class. The Court finds no significant events have occurred that would cause it to change its prior determination that the settlement class met all requirements under Code of Civil Procedure section 382 for certification for settlement purposes at the time it granted Plaintiff's motion for preliminary approval.

On review of the declarations and pleadings submitted, the Court finds, given the established presumption that the settlement is fair and reasonable under the circumstances of this case, and, particularly, given the absence of any objection or opposition following the class notice, that the settlement is fair and reasonable and that the motion for final approval should be, and is hereby, granted.

Therefore, the following deductions from the gross settlement of \$500,000 are approved as follows:

Approved Attorney Fees (33.3%):

\$166,665

Approved Costs (actually incurred):

\$10,150

Approved Enhancement Payment to Plaintiff Eloy Macedonio:

\$5,000

Approved Enhancement Payment to Plaintiff Jesus Macedonio:

\$5,000

Approved Enhancement Payment to Plaintiff Cruz:

\$5,000

Approved Settlement Administrator Costs

\$8,000

Approved Total PAGA Payment

\$10,000

Approved Net Settlement Amount

\$290,195

The Court shall enter its order of final approval and judgment in this case on the proposed order submitted by Plaintiffs on June 18, 2026.

Final Compliance Hearing is set for January 25, 2027, 8:30 am in Department 9.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.